

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

**Non- Execution Application
In
Complaint No. CC006000000000829**

Mr. Suryaprakash Sharma

..... Complainant

Versus

M/s. Nirmal Lifestyle (Kalyan) Pvt. Ltd.

..... Respondent

Project Registration No. **P51700006766**

Coram: Dr. Vijay Satbir Singh, Hon'ble Member – 1/MahaRERA

The complainant appeared in person.

Adv. Tushar Kadam a/w Mrs. Vaishali Chavan appeared for the respondent.

ORDER

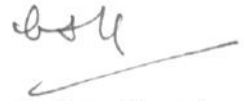
(22nd January, 2020)

1. The complainant above named has filed this application for non-execution of order dated 01-02-2018 passed by the MahaRERA in the aforesaid complaint filed with respect to the project registered by the respondent with MahaRERA. By the said order, the complaint was disposed of in view of the consent terms filed by both the parties through amicable settlement, whereby the respondent had agreed to pay interest for the delayed possession from 1-05-2017 till the actual date of possession.
2. This application is heard finally today. During the hearing, the complainant has brought to the notice of MahaRERA that till date the respondent has not complied with the order and not yet repaid the interest amount to him as per the consent terms.
3. However, the respondent has stated that as on today an amount of Rs. 2,07,621/- is outstanding towards the interest amount. A Demand Draft of Rs.



50,000/- is ready with them. The balance interest amount would be paid to the complainant on or before 31-03-2020. The respondent further clarified that it has applied for occupancy certificate before the competent authority and occupancy certificate will be obtained within a period of 2 to 3 months. The complainant has accepted the said offer given by the respondent.

4. In view of the aforesaid facts, nothing survives in this application. Consequently, the execution application stands disposed of.



(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA